

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

Appellate No. SYN-CA4-26-CV-4103 · City Appearance and Disclosure

Filed January 30, 2026

Leona Vellum, Municipal Appellate Counsel, enters an appearance for appellant City of Norvale. Counsel is authorized to receive notices, orders, and filings for the City in this interlocutory appeal. The City's Office of the City Attorney will remain responsible for service unless a substitution is filed. Counsel requests that the electronic docket use the municipal appellate office's address, telephone number, and service account stated in the filing information accompanying this appearance.

The City is the defendant in District of South Carolina Case No. SYN-DSC-26-CV-0107. It filed the January 29 notice appealing the preliminary injunction entered January 23. The City also filed the January 26 district-court motion for a stay pending appeal, which the district court denied January 28. This appearance does not enlarge the notice of appeal or convert the unresolved constitutional action into an appeal from final judgment.

Counsel is admitted to practice before this Court and certifies familiarity with the federal and local appellate rules. The City consents to electronic service through the Court's filing system. If emergency relief is requested, counsel will comply with the separate requirements governing prior applications, supporting record materials, disclosure, and notice to opposing counsel. No request for relief is contained in this appearance.

Governmental Disclosure

The City of Norvale is a fictional municipal corporation and public governmental body. It has no parent corporation, issues no publicly traded stock, and is not owned or controlled by a private business entity. No publicly held company possesses ten percent or more of any ownership interest in the City. The City therefore reports no corporate parent or stockholder under Federal Rule of Appellate Procedure 26.1.

The municipal departments whose records or responsibilities are discussed in the district materials are components of the City rather than separate corporate affiliates. They include the Department of Parks and Civic Spaces, the permitting office, transportation personnel, and public-safety offices. Their participation in event planning does not make them additional parties. The City Attorney's Office is counsel, not a financially interested entity.

The City is unaware of any publicly traded corporation with a direct financial interest in the outcome of this appeal. Permit-fee receipts, administrative expense, and municipal resource allocation are governmental interests asserted by the appellant; they are not equity interests held by another organization. The City will supplement this disclosure promptly if a relationship requiring disclosure becomes known.

No amicus curiae, insurer, indemnitor, or litigation funder has undertaken control of the City's position as of this filing. Public funds support the City's defense in the ordinary course. This statement addresses disclosure obligations only and does not concede the recoverability, amount, or constitutional relevance of any fee discussed in the appealed order.

Related Matters and Service Certification

After review of the municipal legal docket and the transmitted district docket, counsel identifies no other appeal arising from this action and no pending appellate matter involving the same preliminary injunction. The underlying district case remains active. Proceedings there may continue to the extent consistent with interlocutory review, but the City understands that the merits claims have not been adjudicated finally.

The City will refer to the parties by the caption assigned by the clerk. It does not request a caption change. The appellant is a governmental entity, and the appellee is the Piedmont Booksellers Guild. The City is not aware of a bankruptcy, receivership, or succession that would affect party identity or counsel's authority to appear.

Counsel certifies that this City Appearance and Disclosure was submitted through the Court's electronic filing system on January 30, 2026. Electronic service was directed the same day to counsel who appeared for the Guild on the district docket and in the appellate matter. Counsel also transmitted a courtesy copy to the district-court attorney of record so that service information would remain consistent across the related dockets.

The statements above are accurate after reasonable inquiry as of the filing date. The City accepts a continuing duty to correct its contact information, related-case response, or disclosure if circumstances change. Respectfully submitted for appellant City of Norvale by its Municipal Appellate Counsel on January 30, 2026.